



CHAPTER cxcix.

An Act to confer further powers upon the urban district council for the district of Tottenham in the county of Middlesex and to confer powers upon the Metropolitan Electric Tramways Limited. [15th August 1904.]

A.D. 1904.

WHEREAS the district of Tottenham in the county of Middlesex (hereinafter referred to as "the district") is an urban district within the meaning of the Public Health Act 1875 and the Local Government Act 1894 and is under the management of the Tottenham Urban District Council (hereinafter referred to as "the Council"):

And whereas the North Metropolitan Tramways Company being the owners of certain tramways in the district and elsewhere in the said county of Middlesex were by the North Metropolitan Tramways Act 1902 authorised to adapt their said tramways for working by electricity and in connection with such adaptation of tramways they were by the said Act (subject to their obtaining any power which might be required for the purpose) required to make and complete to the reasonable satisfaction of the Council the widenings of certain streets in the district therein specified:

2 Edw. 7.
c. clxx.

And whereas it was also provided by the said Act that if during the session of Parliament to be held in the year 1903 the said company failed to complete the said widenings by agreement with the parties interested in the lands required for the same or to obtain statutory powers enabling them to take the said lands for the purpose the Council might take all such steps as they might think necessary to obtain the powers for making and might make the said widenings and that the said company should from time to time on demand repay to the Council any costs and expenses reasonably incurred in or incidental to or in connection therewith:

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And whereas in the month of November one thousand nine hundred and two with the consent and approval of the Board of Trade the said North Metropolitan Tramways Company in exercise of the powers in that behalf of the Tramways Act 1870 sold to the Metropolitan Electric Tramways Limited (hereinafter referred to as "the company") those parts of the said tramways which are situate within the county of Middlesex and thereupon all the obligations and liabilities of the said North Metropolitan Tramways Company in respect of the said tramways were transferred to the company:

And whereas neither the company nor the said North Metropolitan Tramways Company have completed the said widenings by agreement or obtained statutory powers as aforesaid and it is expedient that powers be conferred on the Council enabling them to take the lands required for making and to complete the widenings of streets aforesaid:

And whereas it is expedient that in the events hereinafter specified the powers by this Act conferred on the Council should be transferred to and become exerciseable by the company:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas plans and sections showing the lines situations and levels of the street improvements by this Act authorised and plans of the lands in or through which they will be made and of the lands which may be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Middlesex and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited for all purposes as the *Tottenham Improvement Act 1904.*

Incorporation of Acts.

2. The provisions of the Lands Clauses Acts so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act and except section 127 (Within prescribed

period lands not wanted to be sold) of the Lands Clauses Consolidation Act 1845 are hereby incorporated with this Act. A.D. 1904.

3. In construing this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):— Interpre-
tation.

“The district” means the urban district of Tottenham in the county of Middlesex;

“The Council” means the urban district council of the district;

“The company” means the Metropolitan Electric Tramways Limited.

4. Subject to the provisions of this Act the Council may in the lines shown on the deposited plans and according to the levels shown upon the deposited sections make and maintain the street improvements hereinafter described and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as may be required therefor. The improvements hereinbefore referred to and authorised by this Act are— Power to exe-
cute street
works.

Street Widening No. 1 A widening of Green Lanes on the eastern side between points respectively 0·82 chain or thereabouts and 2·4 chains or thereabouts measured in a southerly direction from the southern side of the bridge carrying the Tottenham and Hampstead Junction Railway over Green Lanes:

Street Widening No. 2 A widening of Seven Sisters Road on the southern side between Saint John's Road and Candler Street:

Street Widening No. 3 A widening of High Road on the western side between points respectively 1 chain or thereabouts and 5 chains or thereabouts north of Philip Lane:

Street Widening No. 4 A widening of High Road on the eastern side between Brook Street and a point 4·66 chains or thereabouts north of Brook Street:

Street Widening No. 5 A widening of High Road on the eastern side between Factory Lane and a point 0·54 chain or thereabouts south of Factory Lane.

5. In making any of the works for or connected with the improvements the Council may subject to the provisions of this Deviation
from line and
levels.

A.D. 1904. Act deviate to any extent from the line thereof within the limits of deviation defined on the deposited plans and the Council may subject to the provisions of this Act deviate to any extent from the levels thereof defined on the deposited sections not exceeding two feet.

Power to
alter steps
areas pipes
&c.

6. The Council within the limits of deviation defined upon the deposited plans may for the purposes of and in connection with the improvements raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars cellar-flaps gratings fencings windows and watercourses pipes or spouts belonging to any house or building and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Correction of
errors &c. in
deposited
plans and
book of refer-
ence.

7. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Middlesex (not being members of the Council) for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Middlesex and a duplicate thereof with the clerk of the Council and such certificate and duplicate shall be kept by such clerk of the peace and clerk of the Council respectively with the other documents to which the same relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Costs of arbi-
tration &c. in
certain cases.

8. The court or person to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars

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and in sufficient time to enable the Council to make a proper offer and if they or he shall be of opinion that no such statement giving sufficient particulars shall have been delivered one half of the costs of the arbitration or as the case may be one half of the costs of the proceedings before the sheriff (including the costs of summoning empannelling and returning the jury and of taking the inquiry and of recording the verdict and judgment therein) shall be defrayed by the person with whom the Council shall have such question and the remaining half shall be defrayed by the Council anything in the Lands Clauses Consolidation Act 1845 to the contrary notwithstanding Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

9. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to certain persons to grant easements &c. by agreement.

11. The Council may subject to the provisions of this Act enter into and carry into effect agreements with any person being

Power to Council to make agree-

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—
ments with
owners of
property &c.

the owner of or interested in any lands houses or property abutting on any portion of the streets to be widened under the powers of this Act with respect to the sale by the Council to such person of any lands or property acquired under the powers of this Act for such consideration as may be agreed upon between the Council and such person and the Council may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Council for the purposes of this Act.

Owners may
be required to
sell parts only
of certain
buildings.

12. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the

portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all

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costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Provision as to lands not required for widenings.

13. Forthwith after the completion of the widenings by this Act authorised the Council shall execute and deliver to the Company a deed of conveyance to the Company of all lands acquired under the provisions of this Act then remaining vested in the Council and not used for the purposes of the said widenings.

For protection of East London Waterworks Company.

14. For the protection of the East London Waterworks Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Council have effect (that is to say):—

- (1) The Council shall give to the company not less than fourteen days' notice before commencing to execute any of the works by this Act authorised which would interfere with or injuriously affect any main pipe or apparatus of the company and shall at the same time deliver a plan and section of the proposed work:
- (2) If it should appear to the company that the execution of the work shown on such plan and section would interfere with or injuriously affect any such main pipe or apparatus or interfere with or impede the supply of water the company may at any time within the said period of fourteen days give to the Council notice in writing requiring them to remove divert lower or otherwise alter the position of such mains pipes or apparatus in such manner as may be reasonably required by the company or the company may at any time within seven

days after receipt of any notice from the Council of their agreement to such removal diversion lowering or alteration or (in case the Council shall deny the necessity for such removal diversion or alteration) from the date of any award of an arbitrator under the provisions hereinafter contained determining that such removal diversion or alteration is necessary give to the Council notice in writing of their intention themselves to remove divert lower or alter any such mains pipes or apparatus as aforesaid : A.D. 1904.

- (3) After receipt of any such notice from the company requiring any such removal diversion lowering or alteration it shall not be lawful for the Council to carry out or proceed with the said works otherwise than in accordance with the requirements of the company or as may be settled in case of difference by the award of any such arbitrator as aforesaid unless it shall be determined by any such award that such removal diversion lowering or alteration is unnecessary :
- (4) If the company shall have given to the Council notice of their intention themselves to carry out any work of removal diversion lowering or alteration of any such mains pipes or apparatus as aforesaid to which the Council shall have agreed or which shall have been determined as aforesaid to be necessary the Council shall not execute such work but the company shall carry out such work in accordance with their requirements notified to the Council subject (in case of difference) to any modifications thereof determined by any such award as aforesaid and within such time as the Council may reasonably require and if the company shall refuse or neglect to carry out such removal diversion lowering or alteration within such time it shall be lawful for the Council notwithstanding any notice given to them by the company themselves to remove divert lower or alter such mains pipes or apparatus to such extent as may have been agreed or settled by arbitration but not otherwise :
- (5) Every such removal diversion lowering or alteration of mains pipes or apparatus (whether effected by the Council or by the company) as is referred to in this

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section shall be carried out at the expense of the Council and if the work be done by the Council then also to the reasonable satisfaction of the company :

- (6) Any difference as to the necessity of any such removal diversion lowering or alteration or as to the manner in which the same is to be effected and any other question arising under this section shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers.

Company to pay costs of execution of Act.

15. The company shall from time to time on demand repay to the Council all costs and expenses reasonably incurred by them in or incidental to or in connection with the carrying into execution of the powers of this Act.

Company to exercise powers of Act in default of Council.

16. If within a period of six months after the passing of this Act the Council shall not have commenced to exercise the powers by this Act conferred upon them the Council shall at the expiration of the said period cease to be entitled to exercise the said powers and the company may and shall subject to the provisions of this Act themselves exercise the said powers to the reasonable satisfaction of the Council and shall in the events aforesaid complete the street widenings by this Act authorised within a period of two years after the expiration of the said period.

Costs of Act.

17. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the company.

The SCHEDULE referred to in the foregoing Act. A.D. 1904.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED.

Parish.	No. on deposited Plan.
Tottenham - - -	5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 31 47 55.

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